

knowledge sufficient to respond he shall state as much but shall also make a reasonable and good faith effort to obtain the information by inquiring of others. (See for example, C.C.P. §2030.220(c) and California Evidence Code §702).

Defendant Jurado's further responses are due to Plaintiff by January 30, 2026.

"The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

Under the circumstances, the court finds it would be unjust to grant sanctions to either party. Both parties' requests for sanctions are therefore denied.

2. 9:00 AM CASE NUMBER: C23-02761

CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DISCOVERY REQUESTS
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.**

TENTATIVE RULING:

"The superior court possesses considerable discretion to restrict burdensome or duplicative discovery." (*Carter v. Superior Court* (1990) 218 Cal. App. 3d 994, 997-998.)

Under the Civil Discovery Act of 1986,

the Legislature has provided that although a party "may obtain discovery by one or more" of several methods, "[t]he court shall restrict the frequency or extent of use of these discovery methods if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive. (2) The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case" (§ 2019, subd. (b).) In addition, section 2025, subdivision (i), authorizes the court, "for good cause shown" to protect a party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," by ordering that "all or certain of the writings or tangible things designated in the deposition notice not be produced, inspected, or copied."

(*Carter surpa*, pp. 997-998.)

Here, the court does not find the requested discovery to be burdensome or duplicative. First there are multiple parties all with different roles and different alleged conduct and it is reasonable to anticipate that their responses to the same discovery requests may be different. Furthermore, to the extent that their responses would be identical that would cut against an argument that it is unduly burdensome to comply as counsel would be positioned to merely provide identical responses.

Gary Johnson, Kevin Johnson, and Johnson & Johnson Consulting, LLC ("Defendants/Cross-Complainants") have asserted that they have now served substantive, code compliant, and verified supplemental responses to the eleven sets of written discovery demands at issue here, and they agreed to produce all responsive documents in their possession, custody or control. However, the Defendants/Cross-Complainants also maintain that several documents cannot be produced until Plaintiff/Cross-Defendant Sunpoint ("Plaintiff/Cross-Defendant") produces their own responses to Defendant/Cross-Complainant's motion to compel, asserting that most of the documents are internal to Plaintiff/Cross-Defendant. Plaintiff/Cross-Defendant also asserts that not all documents have been

produced as indicated by Defendant/Cross-Complainant. As such, it would appear that the court's intervention would be appropriate in light of Plaintiff/Cross-Defendant's motion to compel. The court reviewed all discovery sought and makes the following rulings:

As to Defendant/Cross-Complainant, Gary Johnson:

1. Form Interrogatories ("FROGS")– General, Set One:

Request Nos.: 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 9.1, 9.2, 10.1, 10.2, 10.3, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 13.1, 13.2, 14.1, 14.2.

The motion to compel further responses is GRANTED, however, Plaintiff/Cross-Defendant is ORDERED to provide a definition to the word "incident."

Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

However, the court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-Complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were "only objections," thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290, subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for "incident" by December 29, 2025, so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if "the nature of the information sought is apparent."]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased] or, in this instance, defined.)

Request Nos. 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

The court finds that Defendant/Cross-complainant provided substantive responses, however, they were not verified and therefore Plaintiff/Cross-Defendant's Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

2. Special Interrogatories, Set One, Request Nos. 1-84.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide further verified, code-compliant, objection free responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit.

3. Requests for Production of Documents, Set One, Request Nos.: 1-46.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint, objection free responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

Kevin Johnson:

1. Form Interrogatories – General, Set One, Nos.: 2.5, 2.8, 2.9, 2.10, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 8.1, 8.2, 8.3, 8.4, 8.5, 8.6, 8.7, 8.8, 9.1, 9.2, 10.1, 10.2, 10.3, 13.1, 13.2, 14.1 14.2, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

Request Nos. 2.5, 2.8, 2.9, and 2.10. The objections are overruled. Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

Request Nos. 6.2-6.7, 8.1-8.8, 9.1-9.2, 10.1-10.3, 13.1-13.2, 14.1-14.2. The court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were "only objections," thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290,

subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for “incident” by December 29, 2025 so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if “the nature of the information sought is apparent.”]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased or, in this instance, defined.].)

Request No. 50.1. This request was not fully answered as to all of its subparts and therefore further response is warranted.

Request Nos. 50.2, 50.3, 50.4, 50.5, and 50.6. The court finds that Defendant/Cross-complainant provided substantive responses, however, they were not verified and therefore Plaintiff/Cross-Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

2. Form Interrogatories – Employment Law, Set One, Nos.: . 200.1, 200.2, 200.3, 200.4, 200.6, 205.1, 207.2, 208.1, 209.1, 210.1, 210.2, 210.3, 210.4, 210.5, 210.6, 212.1, 212.3, 212.4, 212.5, 212.6, 212.7, 213.1, 213.2, 215.1, 215.2, and 217.1.

Defendant/Cross-complainant provided “only objections” to each of the 26 FROGS-Employment Law and therefore counsel could have verified the responses but it does not appear that they did.

Furthermore, the court reviewed the objections provided and finds the following:

Request Nos. 200.1, 200.2, 200.3, 200.6. Objections overruled. These requests appear relevant and the court does not believe that specific privacy rights are implicated.

Request No. 205.1. Objection that the term “violation of public policy” is vague and ambiguous would be sustained.

Request Nos. 207.2, 209.1, 210.1, 210.5, 210.6, 212.2, 212.7, 213.1, 213.2. All requests appear to relate to damages and would be relevant, if applicable. The objections are overruled.

Request Nos. 215.1 and 215.2. These requests relate to the investigation and the objections are overruled.

Request No. 217.1. This request is duplicative of Form Interrogatory 17.1, as Defendant/Cross-Complainant maintains, however, it is not duplicative to him as that interrogatory was not requested of him in the Form Interrogatories. The objections are overruled.

Despite having merit to at least one objection, Defendant/Complainant failed to initially provide verified responses and as a result, Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

3. Requests for Admissions, Set One, Nos.: 1-18.

Pursuant to California C.C.P. §2033.220, subdivision (a): “Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.” (*Id.*) Boilerplate or unsubstantiated objections are disfavored by courts and may be sanctionable. (See *Korea Data System Co. v. Superior Court* (1997) 51 Cal.App.4th 1513, 1516.) “The party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (C.C.P. section 2033.240, subdivision (a).)

Defendant/Cross-complainant provided “only objections” to all 18 requests for admission, and therefore counsel could have verified the responses but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit. Plaintiff/Cross-Defendant’s Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

4. Special Interrogatories, Set One, Nos.: 1-84.

Plaintiff/Cross-Defendant’s motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide further objection free, verified, code compliant responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided “only objections” to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. Furthermore, the court reviewed the objections provided and finds they are without merit. The court finds the evidence sought specifically relates to Defendant’s/Cross-complainant’s cause of actions and the entirety of the lawsuit.

5. Requests for Production of Documents, Set One, Nos.: 1-39.

Plaintiff/Cross-Defendant’s motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided only objections to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

Johnson & Johnson:

1. Form Interrogatories – General, Set One, Nos.: 8.1, 8.7, 8.8, 9.1, 9.2, 12.4, 12.5, 12.6, 13.1, 13.2, 14.1, and 14.2.

The motion to compel further responses is GRANTED, however, Plaintiff/Cross-Defendant is ORDERED to provide a definition to the word “incident.”

Form interrogatories approved by the Judicial Council entail fundamentally routine discovery of witness contact information. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242,

1250.) Disclosure of addresses and telephone numbers does not amount to a serious invasion of privacy rights. (*Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 544, 561.)

However, the court finds that Defendant/Cross-Complainant's objection as to the word "incident" being vague and ambiguous was a valid objection. Plaintiffs' FROGs did not include any specific definition of the term "incident." "The term 'INCIDENT' may be ambiguous and confusing where the claim involved is based on multiple phone calls, letters, conversations, etc." (Cal. Prac. Guide Civ. Pro. Before Trial, § 8:933.8.) This case involves conduct related to multiple defendants/cross-complainants and involves more than one instance of alleged bad faith conduct by all parties. Thus, it is nearly impossible for Defendant/Cross-complainant to properly respond to these interrogatories as they are ambiguous.

However, the court observes that the responses to the FROGs were not verified and while only a few were substantively answered (see below) not all were only objections, thus they must have been verified. (See C.C.P. §2030.250(c); *Melendez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1351.) An unverified response is equivalent to no response for purposes of a motion to compel a response and untimely responses result in a waiver of all objections to the interrogatories. (See C.C.P. §2030.290, subdivisions (a) and (b); *Appleton v. Superior Court* (1988) 206 Cal.App. 3d. 632, 636.) As a result, the court orders Defendant/Cross-complainant to file verified, objection-free further responses by January 30, 2026, unless they have already done so.

However, Plaintiff/Cross-Defendant Sunpoint is ordered to provide a definition for "incident" by December 29, 2025 so that proper responses can be provided. (See *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 [An interrogatory must be answered if "the nature of the information sought is apparent."]; *Cembrook v. Superior Court* (1961) 56 Cal.2d 423, 430 [Rather than merely sustaining an objection based on an ambiguous word, courts have favored judges ordering that the term be rephrased or, in this instance, defined.])

2. Special Interrogatories, Set One, Nos.: 1-18.

Plaintiff/Cross-Defendant's Motion to compel is GRANTED. Verified, code-compliant, objection free responses are due by January 30, 2026, unless they have already been provided.

Defendant/Cross-complainant answered request No. 1 and then provided "only objections" to the remaining 17. Nonetheless none were verified by Defendant/Cross-Complainant or counsel. The court finds the evidence sought specifically relates to Defendant's/Cross-complainant's cause of actions and the entirety of the lawsuit. The court also finds that reference to the cross-complaint when the questions ask for specific facts and evidence to support Defendant/Cross-complainant's assertions is not a valid objection and was raised in all responses.

3. Requests for Production of Documents, Set One, Nos.: 1-11.

Plaintiff/Cross-Defendant's motion to compel is GRANTED. Defendant/Cross-complainant is ordered to provide requested documents or otherwise verified, code-complaint responses by January 30, 2026, to the extent they have not already done so.

Defendant/Cross-complainant provided "only objections" to all requests and therefore counsel could have verified the responses (see C.C.P. section 2030.250, subdivision (c)), but it does not appear that they did. The court reviewed the objections provided and finds they are without merit. Furthermore, to the extent that Defendant/Cross-Complainant assert the attorney-work product privilege or work

product doctrine they shall provide a privilege log or other like evidence to support their assertions. (C.C.P. section 2031.240, subdivision (c)(1).)

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See C.C.P. §2030.290, subdivision (c).)

Generally, monetary sanctions are mandatory to parties who unsuccessfully defend against discovery motions, unless courts find substantial justification or other injustice. (E.g., *Foothill Properties v. Lyon/Copley Corona Assocs., L.P.* (1996) 46 Cal.App.4th 1542, 1557-1558.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (*Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1435.) “The trial court has broad discretion in deciding whether to impose sanctions and in setting the amount of monetary sanctions.” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789.)

“There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Defendants/Cross-Complainants’ failure to initially provide verified valid objections or code-compliant responses, the court finds that the request for sanctions is excessive. This court does not have the benefit of knowing to what extent Defendants’/Cross-Complainants’ have already provided further responses or produced documents as the parties have provided the court with conflicting information as to this point. While the court is Granting the motion to compel despite representations that there is no need to because Defendants’/Cross-Complainants’ have already provided further responses, this point is disputed by Plaintiff/Cross-Defendant and Defendants/Cross-Complainants admit to not providing all requested documents. Even so, California Rule of Court 3.1348 permits sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when the requested discovery was provided to the moving party after the motion was filed. (See also California C.C.P. §2030.300, subdivision (d).)

Plaintiff/Cross-Defendant’s arguments were convincing and compelled this court to provide intervention and rule substantively on the motion. As such, the court orders Defendant/Cross-Complainants to pay sanctions in the amount of \$900 to Plaintiff/Cross-Defendant by January 30, 2026.